

24TRCV01763 24TRCV01763

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-05

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Case Number: 24TRCV01763 Hearing Date: August 5, 2026 Dept: B

Moving

Parties: Plaintiff Brandon Edwards

Responding

Party: Defendant Mercedes-Benz USA, LLC

Motion

for Attorneys' Fees, Costs, and Expenses

The Court considered the moving papers. The Court did not consider the untimely opposition.

RULING

The motion is GRANTED.

See Order below.

BACKGROUND

On May

23, 2024, plaintiff Brandon Edwards filed a complaint against Mercedes-Benz USA, LLC for violations of the Song-Beverly Act as to a 2021 Mercedes-Benz GLE63C4S.

On

December 31, 2025, plaintiff filed a notice of settlement of the entire case.

On

March 2, 2026, the Court dismissed the case pursuant to CCP §664.6.

On

March 20, 2026, plaintiff filed a memorandum of costs.

LEGAL AUTHORITY

CCP

§1021 states: “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; . . .”

CCP

§1032(b) states: “Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.”

CCP

§1033.5(a)(10)(B) states that attorney fees when authorized by statute are allowable as costs and may be awarded upon a noticed motion pursuant to CCP §1033.5(c)(5).

Civil Code §1794

states, in part: “(a) Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief. . . . (d) If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

“The

trial court has ‘broad authority’ to determine the amount of a reasonable attorneys’ fees. *PLCM Group v.*

Drexler (2000) 22 Cal.4th 1084, 1095. “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*Id.* [“California courts have

consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award."].) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." *Martino v. Denevi* (1986) 182 Cal. App. 3d 553, 559. "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal. App. 4th 550, 564.

DISCUSSION

Pursuant

to Civil Code §1794(d), plaintiff requests an order awarding in plaintiff's favor \$29,625, consisting of \$25,625 in attorney's fees, a 1.1 multiplier of \$2562.50, and \$1237.43 in costs.

Entitlement

Plaintiff

states that on April 23, 2025, defendant served a 998 offer to compromise, which plaintiff accepted on May 15, 2025.

The 998 offer states, in part, that MBUSA will pay the total amount of \$77,692.76 to plaintiff plus all loan payments made after February 16, 2024, for total restitution of \$147,742.26.

Further, MBUSA will pay plaintiff's attorney's fees, expenses and costs in the amount of \$10,000 in full satisfaction of any attorney's fees, expenses and costs owed to plaintiff in this action.

Alternatively, should the \$10,000 be refused, MBUSA will allow the Court to determine in a noticed motion filed pursuant to Civil Code §1794(d) and/or by plaintiff's filing of a memorandum of costs, the attorney's fees, costs, and expenses recoverable under Civil Code 1794(d).

The

Court finds that plaintiff is the prevailing party.

Reasonableness

Plaintiff

requests \$25,625 in attorney's fees and a 1.1 multiplier of \$2562.50.

Counsel

Isaac Kohen states that his billing rate is \$575/hr. and that Tamara R.

Artolozaga's rate is \$375. He states

that the following hours were incurred: he

spent 8.7 hrs. pre-litigation work, 22.8 hrs. before trial, and 7.5 hrs.

preparing motion and anticipate spending another 4 hrs. preparing reply and

attending hearing and Artolozaga spent 2.4 hrs. before trial, for a total of

45.4 hours. See Isaac Kohen decl., Exhs.

1, 2 (time sheets).

The Court

rules as follows: Having reviewed the

billing records, the Court finds that some time expended was not reasonable,

primarily for this motion but also including other tasks (e.g., court

appearances, clerical work), and reduces the total hours requested. There was no litigation. The Court finds that \$450 is a reasonable hourly

rate for Kohen and \$275 is a reasonable hourly rate for Artolozaga. The Court declines to impose a multiplier. Thus, the Court finds that \$17,655 ($\450×38.5

hrs. and $\$275 \times 1.2$ hrs.) is a reasonable amount in attorney's fees.

As for

costs, the Court finds that the following costs are either not reasonable or

necessary or not recoverable: \$120 for

mechanical expert/consultant; \$135 for messenger services for courtesy copies

to the Court; \$100 for copying, scanning, and/or digitizing; \$95.25 for

postage/delivery fees; and \$75 for mechanical database research costs. The Court thus strikes \$525.25 from the memorandum of costs.

The

Court notes that the hearing on the motion was previously continued due to lack

of proper service on defendant. Before

the prior hearing, defendant filed a document noting that had it been properly

served, it would have filed a timely opposition. The Court continued the hearing date by

approximately two months to ensure defendant had proper notice and time to file

an opposition. Defendant had timely

notice of the new hearing date. Yet defendant

failed to file a timely opposition, instead filing an opposition on July 29 –

the due date for the reply brief.

The

motion is GRANTED.

ORDER

The motion is GRANTED.

The

Court awards \$17,655 in attorney's fees in favor of plaintiff and against defendant Mercedes-Benz USA, LLC.

The

Court strikes \$525.25 from the memorandum of costs. Plaintiff is awarded \$712.18 in costs.

Plaintiff is ordered to give notice of ruling.